

25SMCV03494 25SMCV03494

County: los-angeles

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Case Number: 25SMCV03494 Hearing Date: September 24, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

September

24, 2026

CASE NUMBER

25SMCV03494

MATTER

Request

for Default Judgment

This case arises from a dispute concerning an outstanding debt owed for medical services rendered in connection with an underlying slip and fall lawsuit. The crux of the dispute is that the medical providers argue that defendants patient and law firm breached their respective contracts by not paying all outstanding sums owed, and that the law firm also tortiously breached its fiduciary duties by collecting the sums owed, but refusing to disburse it in full to the medical providers.

On July 2, 2025, Plaintiffs DOCS Spine + Orthopedics, successor to Perri + Siddique Spine Surgery ("DOCS"); Albert P. Wong, M.D. ("Wong"); and Parham Yashar, M.D. dba PY26 Neurosurgery P.C. ("Yashar") (together, "Plaintiffs") brought suit against Defendants Michael Ryan Dufour ("Dufour"); Dufour Law, P.C.[1] ("Dufour Law"); Valena Mitchell ("Mitchell") (together, "Defendants") and Does 1-20, alleging nine causes of action as follows:

By
DOCS:

(1)
Breach of Contract (against Dufour and Mitchell)

(2)
Common Counts (against Dufour and Mitchell)

(3)
Intentional Tort – Breach of Fiduciary Duty (against
Dufour and Dufour Law)

By
Yashar:

(4)
Breach of Contract (against Dufour and Mitchell)

(5)
Common Counts (against Dufour and Mitchell)

(6)
Intentional Tort – Breach of Fiduciary Duty (against
Dufour and Dufour Law)

By
Wong:

(7)
Breach of Contract (against Dufour and Mitchell)

(8)

Common counts (against Dufour and Mitchell)

(9)

Intentional Tort – Breach of fiduciary duty (against
Dufour and Dufour Law)

Mitchell and Dufour were served by publication on March 30, April 6,
April 13, and April 20, as ordered by the Court on March 12, 2026.

Dufour Law, P.C. was served via the Secretary of State on April 6,
2026, as ordered by the Court on March 26, 2026.

Default was entered against Defendants on June 10, 2026 and the Doe
Defendants were dismissed on August 31, 2026.

Plaintiffs now request default judgment as follows:

By DOCS: \$511,364.70, representing
\$415,237.50 special damages as demanded in the Complaint and \$96,127.20 in
prejudgment interest.

By Yashar: \$42,176.10, representing
\$34,250 special damages as demanded in the Complaint and \$7,926.10 in
prejudgment interest.

By Wong: \$68,852.51, representing
\$39,652 special damages as demanded in the Complaint and \$9,176.70 in
prejudgment interest.

In addition, the parties seek
\$2,958.17 in costs and \$17,854 in attorneys' fees, jointly and severally.

A. Damages

In
the Complaint, DOCS seeks damages in the amount of \$415,237.50; Yashar seeks
damages in the amount of \$34,250; and Wong seeks damages in the amount of
\$39,652.

Therefore,

Plaintiffs do not seek damages in excess of what is pled in the Complaint. (See Code Civ. Proc., § 580, subd. (a) ["The relief granted to the plaintiff, if there is no answer, cannot exceed that demanded in the complaint"]; Levine v. Smith (2006) 145 Cal.App.4th 1131, 1136-1137 ["when recovering damages in a default judgment, the plaintiff is limited to the damages specified in the complaint"].)

a.

DOCS

In support of the request, DOCS advances the Declaration of Brian Perri, which provides:

2. I am a Doctor of Osteopathic Medicine, and practice in the Los Angeles area. DOCS Spine + Orthopedics is the successor to Perri + Siddique Spine Surgery, and is the medical group where I work.

3. I performed three surgeries on defendant Valena Mitchell at various times between August 17, 2021 and March 28, 2023.

4. As a result of the surgeries and various visits, Ms. Mitchell incurred a total bill for the services of DOCS Spine + Orthopedics in the amount of \$415,237.50. A copy of Ms. Mitchell's billing summary reflecting that sum (which has been redacted to exclude confidential information) is attached as Exhibit "A."

5. The billing was issued pursuant to a June 7, 2021 lien agreement signed by the defendants with DOCS Spine + Orthopedics, which provided for payment to be made from the settlement of her personal injury claim.

6. It is my understanding that Ms. Mitchell's personal injury claim was resolved on or about May, 2024. I have not been paid any portion of my bill since that time, despite filing and serving this lawsuit.

Perri

Decl. ¶¶ 2-6.) However, Exhibit A itemizes outstanding balances totaling only \$413,137.50, not \$415,237.50, as requested. Therefore, DOCS has

substantiated damages only in the amount of \$413,137.50.

b. Yashar

In support of the request, Yashar advances the Declaration of Parham Yashar, M.D., which provides as follows:

2. I am a neurosurgeon, and I do business using the name PY26 Neurosurgery P.C.

3. Mitchell. On February 21, 2023, I assisted with a surgery performed on defendant Valena

4. As a result of the surgery and related visits, Ms. Mitchell incurred a bill for my services in the amount of \$34,250. A copy of the patient ledger reflecting that sum (which has been redacted to exclude confidential information) is attached as Exhibit "A."

5. The billing was issued pursuant to a lien agreement signed by the defendants in this action on January 23, 2023, which provided for payment to be made from the proceeds from her personal injury claim.

6. It is my understanding that the personal injury claim was resolved on or about May, 2024. I have not been paid any portion of my bill since that time, despite filing and serving this lawsuit.

(Yashar

Decl. ¶¶ 2-6.) Further, the invoices attached as Exhibit A to the Yashar Declaration itemize an outstanding balance of \$34,250 as requested.

c.

Wong

In support of the request, Wong advances the Declaration of Albert P. Wong, M.D., which provides:

2. I am a neurosurgeon, and practice in the Los Angeles area with DOCS Spine+ Orthopedics.

3. On August 17, 2021, I assisted with a surgery on defendant Valena Mitchell.

4. As a result of the surgery, Ms. Mitchell incurred a bill for my services in the amount of \$39,625. A copy of a billing summary reflecting that sum (which has been redacted to exclude confidential information) is attached as Exhibit "ج."

5. The billing was issued pursuant to a June 7, 2021 lien agreement signed by the defendants with my medical group, DOCS Spine + Orthopedics, which provided for payment to be made from the settlement of her personal injury claim.

6. It is my understanding that Ms. Mitchell's personal injury claim was resolved on or about May, 2024. I have not been paid any portion of my bill since that time, despite filing and serving this lawsuit.

(Wong

Decl. ¶¶ 2-6.) Yet, the invoices

attached as Exhibit A to the Wong Declaration itemize an outstanding balance of only \$39,625, not \$39,652, as requested.

B. Prejudgment Interest

Plaintiffs

seek prejudgment interest at the legal rate of 10% annually for the 845 days from June 1, 2024 to September 24, 2026. The Court generally finds that the requested interest rate and days are appropriate.

However,

in light of the adjustments to the principal balances, as outlined above, the Court finds prejudgment interest should be awarded as follows:

.

DOCS: \$413,137.50 principal balance x 10%

÷ 365 days/yr = \$113.19 daily interest x 845 days = \$95,645.55.

.

Yashar: \$34,250 principal balance x 10% ÷

365 days/yr = \$9.38 daily interest x 845 days = \$7,926.10, as requested.

Wong: \$39,625 principal balance x 10% ÷

365 days/yr = \$10.86 daily interest x 845 days = \$9,176.70.

C. Attorneys' Fees and Costs

Code of Civil Procedure

section 1033.5, which outlines recoverable costs to a prevailing party under Code of Civil Procedure section 1032, permits the recovery of attorneys' fees when authorized by contract, statute, or law.

(Code Civ. Proc., § 1033.5, subd. (a)(10).) Code of Civil Procedure section 1021 provides

"[e]xcept as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties [....]" Similarly, Civil Code section 1717 provides "[i]n any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code, § 1717, subd. (a).)

The Code of Civil Procedure defines the "prevailing party" as follows:

[T]he party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the "prevailing party" shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.

(Code

Civ. Proc., § 1032, subd. (a)(4).)

Attached as Exhibits A and C to the Complaint are Medical Lien Agreements between Mitchell and Dufour on the one

hand and DOCS Spine/Dr. Wong on the other hand, which provides, "Attorney further agrees that in the event this lien is litigated that the prevailing party will be awarded attorney fees and costs."
That provision is signed only by attorney Dufour.

Further, attached
as Exhibit B to the Complaint is the Lien Agreement as between Yashar, Mitchell, and Dufour. Paragraph 9 of
that agreement provides as follows:

9. ENFORCEMENT OF AGREEMENT. Should suit be filed, or any other action taken to enforce this agreement, outside of interpleader, the prevailing party shall be entitled to reasonable attorney's fees and costs. Jurisdiction and Venue is in Los Angeles, California where this agreement is entered into and to be carried out by the parties.

(Ex. B to Complaint at ¶ 9.)

Thus, DOCS
and Wong are entitled to recoup attorneys' fees as against the Dufour Defendants only, whereas Yashar is entitled to recoup attorneys' fees as against both Mitchell and Dufour.

As for the amount
of attorneys' fees, Plaintiffs advance the Supplemental Declaration of J. Patrick Fleming, Jr., which provides:

5. To assist the Court, I have reviewed the billing summary attached hereto as Exhibit "D." It shows that through May 30, 2026, my clients incurred \$6,664 billed at \$595/hour for 8.7 hours of my work, and \$10,912 billed at \$620/hour for 17.6 hours of my work. In addition, it shows an additional \$288 incurred for paralegal and legal assistant time. All totaled, this adds up to \$17,854

(Supp. Fleming Decl. at ¶ 5.)

Therefore,
Plaintiffs have adequately substantiated the requested attorneys' fees. Because Yashar's pro rata share of the principal balance is about 7%, Yashar shall be entitled to recoup about 7% of the requested attorneys' fees, or \$1,255.61 against Mitchell.

Plaintiffs also
request costs, jointly and severally, in the amount of \$2,958.17, representing
\$497.20 in filing fees, \$2,082.22 in process server fees, and \$378.75 for
efiling. (See CIV-100.) Plaintiffs' request for costs is granted as
Plaintiffs are the prevailing parties in this action. (Code
Civ. Proc., § 1032, subd. (a)(4).)

CONCLUSION

Plaintiffs'
requests for default judgment is granted in part as follows:

.
DOCS: special damages in the amount of \$413,137.50 and prejudgment interest in the amount of \$95,645.55

.
Yashar: special damages in the amount of
\$34,250 and prejudgment interest in the amount of \$7,926.10.

.
Wong: special damages in the amount of \$39,625
and prejudgment interest in the amount of \$9,176.70

In addition,
Plaintiffs are entitled to their costs, jointly and severally, in the amount of
\$2,958.17.

Further,
Plaintiffs are entitled to recoup attorneys' fees, jointly and severally,
against Defendants Dufour and Dufour Law in the amount of \$17,854. Of that amount, Defendant Mitchell is jointly
and severally responsible for \$1,255.61 as to Yashar only.

Plaintiffs shall
lodge a revised proposed Judgment in conformance with the ruling on or before October
9, 2026. As such, the Court continues
the Order to Show Cause re Entry of Default Judgment to October 30, 2026 at
8:30 A.M. in Department 207. No appearance
will be necessary at the Order to Show Cause hearing if the judgment is entered
beforehand.

Unless Plaintiffs

waive notice, the Clerk of the Court shall provide notice of the Court's ruling.

DATED: September 24, 2026 /s/_____

Michael

E. Whitaker

Judge

of the Superior Court

[1] Dufour Law was erroneously named initially as Dufour

Law, APC, which was corrected by amendment dated March 26, 2026.